

Additional security under Para 4.20 — writ dismissed following lead matter

High Court of Judicature at Allahabad · Division Bench · 21 March 2017 · WRIT-C No. 34868 of 2013 · **Writ dismissed following order in Writ-C No. 30898 of 2016.**

HEADNOTE

A consumer's writ challenging demand of additional security under Paragraph 4.20 of the U.P. Electricity Supply Code, 2005, connected with a batch of similar petitions, was dismissed by the Division Bench with a direction to see the order of even date in Writ-C No. 30898 of 2016. Interim restraint on the demand, granted in 2013 on the pattern of Writ Petition No. 30582 of 2009, thus stood vacated by the dismissal.

FACTUAL SUMMARY

M/s Sterling Machine Tools challenged before the Allahabad High Court a demand of additional security under Paragraph 4.20 of the U.P. Electricity Supply Code, 2005. The writ was connected with Writ Petition No. 30582 of 2009 (M/s Vehina Steels & Alloys Pvt. Ltd.) and other similar matters. On 2 July 2013 the Court, following the interim protection already granted in that connected petition, restrained the respondents from demanding additional security until further orders and allowed three weeks to file a counter affidavit.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.20

additional security

HOLDING

The writ petition challenging demand of additional security under Paragraph 4.20 of the U.P. Electricity Supply Code, 2005 is dismissed, the Court directing that orders be seen in the order of even date passed in Writ-C No. 30898 of 2016.

¶ 21.3.2017